| STANDARD OPERATING PROCEDURE | G-5500 |
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| | SARPY COUNTY<br>SHERIFF'S OFFICE<br>PAPILLION * NEBRASKA<br>**GREG LONDON**<br>**SHERIFF** | DATE ISSUED<br>12/04/06 | DATE REVISED<br>**08/04/25** | DATE REVIEWED<br>02/02/25 |
| | | APPROVED:<br>*GREG LONDON* | | |

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| CHAPTER TITLE<br>GENERAL | RESOURCES<br>FOP CONTRACT |
| SUBJECT<br>LEAVE REQUESTS | CROSS REFERENCE<br>G-7100 SICK LEAVE |

## I. Purpose:

The purpose of this policy is to establish the guidelines for approved leave.

## II. Policy:

No employee shall be absent from duty without approved leave. Members of the Sarpy County Sheriff's Office shall adhere to the following procedures when requesting leave.

## III. Procedures:

**A. Vacation/Compensatory Leave:** For purpose of this policy vacation and compensatory time shall be equal.

**1.** All employees shall submit leave requests as far in advance as reasonably possible.

**2.** If an employee is requesting earned time off to include, but not limited to vacation time, sick time, compensatory time, funeral leave, civil leave, training, military leave, or holiday leave, he or she shall electronically submit a Leave Request. This provision may be waived upon approval of the Sheriff.

**3.** All leave requests shall be submitted a minimum of five (5) days prior to the requested date(s). Requests submitted less than five (5) days prior to commencement shall be considered on a case-by-case basis. Leave requests for Juvenile Services employees shall be submitted by Wednesday at 0600 hours for the following week.

**4.** In the event an employee is transferred from one division to another or to another shift assignment, it shall be the employee's responsibility to notify his or her immediate supervisor or division commander in writing of any pre-

approved leave. If an employee should fail to notify the appropriate supervisor of pre-approved leave, the leave may be cancelled.

**5.** Subject to manpower and staffing requirements, as may be determined by the Sheriff, no limitations shall be placed on the number of accrued vacation or compensatory hours which may be taken by an employee as approved by the Sheriff.

**6.** Leave Provision:

**a)** When a sworn employee applies for leave, a sworn employee's request may be supplanted ("bumped") by a senior sworn employee prior to sixty (60) calendar days before the requested leave date(s). After a sworn employee's request has reached the sixty (60th) day prior to commencement, the request may no longer be supplanted by a senior employee.

**(1)** Seniority, as it applies to granting employees preference for leave, shall be based on continuous length of service with the Sheriff's Office as stipulated in the current FOP contract.

**(2)** Should two or more employees request leave for the same date(s) and if the requests are made less than forty-five (45) calendar days for non-sworn and less than sixty (60) calendar days for sworn prior to commencement, the first employee to make the request known to his or her supervisor verbally or by submission of an Electronic Leave Request form shall take precedence. For Juvenile Services, the first employee to submit an Electronic Leave Request shall take precedence.

**(3)** Full-time employees shall take precedence over part-time employees regardless of length of service with the Sheriff's Office when it applies to vacation leave.

**b)** When a non-sworn employee applies for leave, an employee's request may be supplanted by a senior employee prior to forty-five (45) calendar days before the requested leave date(s). After an employee's request has reached the forty-fifth (45) day prior to commencement, the request may no longer be supplanted by a senior employee. Sections III. A. 6. A)(1-3) above shall also apply.

**B.** **Unused Vacation Time:** Sworn employees may carry over up to 120 hours of vacation leave per year. Sworn employees wanting to carry over an excess of 120 hours per year shall submit a request through his or her chain of command to the Sheriff. The Sheriff shall determine if the employees request is granted.

**C.** **Civil Leave:** An employee shall be given time off without loss of any pay if he or she is called to serve on a jury or a County Election Board. The employee may retain any fees paid for his or her service.

**D.** **Funeral Leave:** Funeral leave shall be granted based upon the relationship between the employee and the deceased. An employee requesting funeral leave shall notify his or her immediate supervisor or the ADC as soon as possible prior to the leave. Funeral Leave may include leave related to memorial services and/or bereavement period for the deceased. Bereavement leave begins when the employee and the employee's division commander schedule the period of allotted calendar days.

**1.** Funeral leave up to five (5) consecutive days may be granted to an employee for the attendance and/or bereavement at the funeral of a family member within one of the following groups: spouse, child related by blood, marriage or adoption; father; mother; brother or sister.

**2.** Funeral leave up to four (4) consecutive days may be granted to an employee for the attendance and bereavement at the funeral of a family member within one of the following groups: grandmother, grandfather, grandchildren, father-in-law, mother-in-law, son-in-law, or daughter-in-law.

**3.** Funeral leave of one (1) day may be granted to an employee for the attendance and bereavement at the funeral of a family member within one of the following groups: aunt, uncle, niece, nephew and the following in-laws: grandfather, grandmother, sister or brother.

**4.** In addition, at the discretion of the Sheriff, the use of non-consecutive bereavement leave and/or additional calendar days of funeral leave may be granted. Requests to the Sheriff shall be submitted in writing to an Administrative Command Officer. The Administrative Command Officer shall notify the employee and the employee's chain of command of the Sheriffs decision.

**E.** **Sick Leave:** See G-7100 Sick Leave.

**F.** **Floating Holiday:** An employee may submit an Electronic Leave Request for a floating holiday to his or her supervisor when that request does not create an overtime situation that can be foreseen at the time of the request. After a request to use a floating holiday has been approved, it may only be supplanted by a senior employee as described in vacation/compensatory leave section of this policy (section A, 6). Floating holidays can only be used for the entire work shift. Floating holidays may not be split into individual hours. (e.g.: Employees working a twelve (12) hour shift must use the entire twelve (12) hour floating holiday on a single work shift.)

**G. Leave of Absence without Pay:**

**1.** An employee may request time off in the form of leave of absence without pay.

**a)** Any leave of absence greater than thirty (30) consecutive calendar days and up to one year, for good cause shown, may be granted by the Sheriff. When a leave of absence is granted, all accumulated sick, vacation, seniority, and compensatory time, if any, shall be frozen, and the employee shall not continue to accrue these benefits while on leave of absence without pay. The effective leave date shall be retroactive to the first workday absent. An employee requesting such leave shall submit a payroll deduction approval form attached to a memorandum detailing the reason for the requested leave. The payroll deduction form shall be handwritten and not submitted electronically.

**b)** If the leave of absence is thirty (30) consecutive calendar days or less, but greater than twenty-four (24) hours, the employee shall exhaust all vacation and compensation time, prior to being approved for leave of absence without pay. If approved, no adjustment shall be made regarding longevity, step increases, seniority, or vacation accrual. An employee requesting such leave shall submit a payroll deduction approval form attached to a memorandum detailing the reason for the leave request. The payroll deduction form shall be handwritten and not submitted electronically. Request for leave of absence without pay for less than thirty (30) consecutive calendar days but more than twenty-four (24) hours may only be approved by the Sheriff or his designee.

**c)** An employee may request a leave of absence without pay prior to exhausting all of his or her vacation or compensation time under the following conditions:

**(1)** The employee shall have completed at least one full year of service.

**(2)** The leave of absence without pay request shall not exceed twenty-four (24) hours of unpaid leave per calendar year.

**(3)** Employees requesting leave of absence without pay are required to take the leave over a full assigned duty shift, (i.e. four (4), eight (8), ten (10), or twelve (12) hour shift). Partial days of leave of absence without pay shall not be approved.

**(4)** When requesting leave of absence without pay, an employee's request may be supplanted ("bumped") up to

twenty-four (24) hours from the requested leave date(s). After an employee's request has reached the twenty-four (24) hour commencement, the request may no longer be supplanted.

**(5)** All requests for vacation, compensation, floating holidays, and sick leave, shall supersede leave of absence without pay requests except those within the twenty-four (24) hour period as mentioned in the above section: F, 1, c) (4).

**(6)** Requested leave time of four (4) total hours or less, may be approved by the employee's division commander. All other requests must be approved by the Sheriff or his designee.

**2.** The supervisor of an employee who is suspended without pay for disciplinary reasons shall complete a Payroll Deduction Approval form for the total hours suspended, including the dates of the suspension.

**3.** Employees, during their first year of probation, who have not yet received vacation time may be granted leave without pay at the discretion of the Sheriff. The amount of leave shall not exceed forty hours during the probationary period. This provision shall only apply to new employees and shall not "carry over' into future years.

**H. Submission Verification:** It shall be the responsibility of the employee to verify his or her leave request has been recorded correctly. Any discrepancies shall be brought to the attention of the administrative division as soon as possible, but prior to the annual data conversion (i.e.: January 1st). The overtime records of all employees shall be kept on file for no less than three (3) calendar years.

**I. Supervisor Responsibilities:**

**1.** Supervisors shall keep a record of their shift time off so as to keep track of how many employees are off of work at any given time.

**2.** Supervisors may deny any leave request if the request will likely result in minimum staffing.

**3.** Supervisors shall notify the Administrative Division if an employee requests leave to extend beyond three (3) duty shifts, no matter the reason for the leave. For example: An employee is taking a vacation out of the country for three (3) weeks. Juvenile Services shall track extended leave requests within their divisions.